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Order QR

IN THE HIGH COURT OF JUDICATURE AT MADRAS

DATED: 23-10-2026

CORAM

THE HON'BLE MR.JUSTICE N.RAMESH

CRL OP No. 30956 of 2026

CNR: {HCMA012562302026}

Navenkumar Kamalnadhan
S/o Kamalnadhan,
367, Pillaiar Kovil,
Gangavaram,
Tiruvannamalai,
Tamilnadu.

Case QR

..Petitioner(s)

Vs

The State rep by the Inspector of Police
W-26, All Women Police Station,
Ashok Nagar,
Chennai.
crime no.24 of 2026.

..Respondent(s)

Prayer: This petition is filed under section 483 of BNSS to enlarge the petitioner on Bail in Crime no.24 of 2026 on the file of the Inspector of Police, W-26, All Women Police Station, Ashok Nagar, chennai and pass any such other order or orders.

For Petitioner(s): Mr. P. Paul Prathap

For Respondent(s): Mr. M.M.I.KHALEEL GOVERNMENT ADVOCATE (CRL.SIDE)

ORDER

The Petitioner who was arrested and remanded to judicial custody on 17.09.2026 for the alleged offence under Section 69 of BNS in Crime No.24 of 2026 on the file of the respondent police, seeks bail.

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2. The case of the prosecution is that the petitioner on false promise to marry the defacto complainant had physical relationship with her and thereafter refused to marry her. Now the defacto complainant is 8 months pregnant. Hence, the case.

3. The learned counsel for the petitioner submitted that the petitioner is a innocent and he has been falsely implicated in this case. He further submitted that the petitioner is in judicial custody since 17.09.2026. He also submits that if the DNA test report of the child turns that the petitioner is the father of the child, he is ready to marry the victim girl and he is ready to file an affidavit to that effect before the Court below. Hence, he prays for grant of bail to the Petitioners.

4. Per contra, the learned Government Advocate (Criminal Side) appearing for the Respondent Police reiterated the prosecution case and submitted that the petitioner, had physical relationship with the victim and thereafter refused to marry her. Now the victim girl is 8 months pregnant. Hence, he opposed the grant of bail to the petitioner.

5. I have given my anxious consideration to either side submissions and perused the materials available on record.

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6. Considering the nature and gravity of the allegations and the petitioner is ready to file an affidavit before the Court below that if the DNA test report of the child turns that the petitioner is the father of the child, he is ready to marry the victim girl and the period of incarceration undergone by the petitioner, this Court is inclined to grant bail to the petitioners, subject to certain conditions.

7. Accordingly, the petitioners are ordered to be released on bail on their executing a bond for a sum of **Rs.25,000/- each (Rupees Twenty Five Thousand only)** with **two sureties each**, for a like sum to the satisfaction of the **learned XXIII Magistrate Court, Saidapet** and on further conditions that:

[a] the sureties shall affix their photographs and Left Thumb Impression in the Application for Surety ship [Judicial Form No.46 annexed to 'The Criminal Rules of Practice, 2019']. The learned Magistrate shall obtain a copy of any one of the identity proofs to ensure their identity;

[b]**the petitioner shall file an affidavit before the jurisdictional Magistrate undertaking that if the DNA test report of the child turns that she is the father of the child, he is ready to marry the victim girl**

[c] the petitioners shall report before the respondent police daily at 10.30 a.m., until further orders.

[d] the petitioners shall not abscond either during

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investigation or trial;

[e] the petitioners shall not tamper with the evidence or witness either during investigation or trial;

[f] On breach of any of the aforementioned conditions, the learned Magistrate/Trial Court is entitled to pass appropriate orders against the petitioners in acc with law as if the aforementioned conditions have been imposed and the petitioners released on bail by the learned Magistrate/Trial Court himself as laid down by the Hon'ble Supreme Court in **P.K.Shaji vs. State of Kerala [(2005)13 SCC 283];**

[g] If the accused thereafter absconds, a fresh FIR can be registered under Section 269 of B.N.S.

23-10-2026

smn

Note:

1. Registry is directed to forthwith upload this order in the Official Website of this Court.
2. All concerned to act on this order being uploaded in Official Website of this Court without insisting on certified hard copies. To be noted, this order when uploaded in the official website of this Court will be watermarked and will also have a QR code.

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To.

1. The XXIII Magistrate Court, Saidapet

2.The Inspector of Police

W-26, All Women Police Station,Ashok Nagar,Chennai.

3. The Superintendent Central Prison, Puzhal II, Chennai

4. The Public Prosecutor, High Court, Madras

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N.RAMESH, J.

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